

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK-----X  
LEVON SMITH,

Plaintiff

Index No.

Venue is designated  
New York County

-against-

Basis of designated  
venue is place of occurrenceCITY OF NEW YORK, SERGEANT CHRISTOPHER  
GIANNETTI, Shield No. 288, and P.O. JUAN INOA,  
Shield No. 20964,Defendants  
-----XSUMMONS**To the above named Defendants:**

**YOU ARE HEREBY SUMMONED** to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a Notice of Appearance, on the plaintiffs' attorneys within twenty (20) days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York  
June 7, 2016**LAW OFFICES OF K.C. OKOLI, P.C.**

Attorneys for Plaintiff

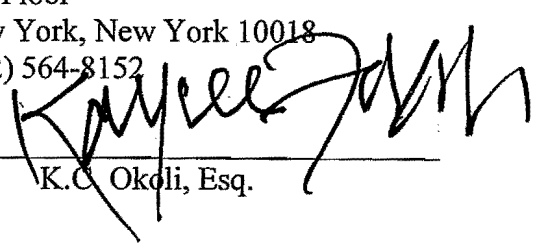
LEVON SMITH

330 Seventh Avenue

15<sup>th</sup> Floor

New York, New York 10018

(212) 564-8152

By: 

K.C. Okoli, Esq.

FOR SERVICE ON

CITY OF NEW YORK  
C/o ZACHARY W. CARTER  
Corporation Counsel  
NYC Law Department  
100 Church Street  
New York, New York 10007

SERGEANT CHRISTOPHER GIANNETTI  
New York City Police Department  
New York, New York

P.O. JUAN INOA  
New York City Police Department  
New York, New York

SUPREME COURT OF THE STATE OF NEW YORK  
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CITY OF NEW YORK, SERGEANT CHRISTOPHER  
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Shield No. 20964,

Defendants  
-----X

Plaintiff, by his attorneys, LAW OFFICES OF K.C. OKOLI, P.C., complaining of the  
defendants, alleges as follows:

JURISDICTION AND VENUE

1. This action is brought pursuant to the Civil Rights Acts, 42 U.S.C. §1983, for violation of the Plaintiff's Constitutional and civil rights, and pursuant to the common law of the State of New York for false arrest and malicious prosecution.
2. The jurisdiction of the Court is invoked to secure the protection and redress the deprivation of rights guaranteed to persons, including Plaintiff herein, by the Fourth and Fourteenth Amendments to the Constitution of the United States.
3. Venue is proper in the County of New York based upon the fact that the events or omissions which give rise to the claims asserted herein occurred within New York County.
4. On or about May 15, 2015, Plaintiff duly served a Notice of Claim pursuant to the

General Municipal Law in connection with the state law claims asserted herein,

5. On August 11, 2015, the City of New York conducted a General Municipal Law, Section 50-H hearing in this matter.

6. More than 30 days have elapsed since the service of the aforesaid Notice of Claim, and the Defendants have neglected or refused to make any adjustment or payment thereof.

7. This action is commenced within one year and 90 days from the accrual of the state causes of action asserted herein.

#### PARTIES

8. At all times hereinafter mentioned, Plaintiff, Levon Smith ("SMITH" or "Plaintiff"), was a resident of the County of Westchester, State of New York.

9. Upon information and belief, at all times hereinafter mentioned, defendant the CITY OF NEW YORK (hereinafter, "CITY") was and is a municipal corporation established under and by virtue of the laws of the State of New York.

10. At all times hereinafter mentioned, defendant Sergeant Christopher Giannetti ("GIANNETTI"), was a police sergeant with the New York City Police Department ("NYPD").

11. At all times hereinafter mentioned, defendant PO Juan Inoa ("INOA"), was a police officer with the NYPD.

12. At all times hereinafter mentioned, the CITY maintained, operated, controlled and supervised the NYPD.

### STATEMENT OF FACTS

13. On or about January 15, 2015, at approximately 10:05 PM, at 112<sup>th</sup> Street and 5<sup>th</sup> Avenue, in the Borough of Manhattan, SMITH was falsely arrested for the attempted theft of a 2014 Mercedes Benz ML 350 SUV.

14. At the time aforesaid, Raphael Legier, the registered owner of the said Mercedes Benz SUV, had requested SMITH to go take possession and ensure the safety of said Mercedes Benz SUV.

15. The SUV had been left on a public street when the driver thereof, John Hayes, was arrested by the police a few blocks from where the SUV was parked on a public street.

16. Upon information and belief, the NYPD officers who arrested Mr. Hayes had refused to allow Mr. Hayes send the for SMITH to come and retrieve the SUV keys so it could be taken to a safe location.

17. Whilst there present with a tow truck which SMITH had called to help tow the SUV to a safe place, defendants who appeared to be lying in wait, approached SMITH and began questioning SMITH with regard to his relationship with the SUV.

18. SMITH explained to the police officers that Mr. Legier, the registered owner of the SUV had given him permission to remove the SUV to a safe place since it was unreasonable and unsafe to leave a 2014 Mercedes Benz SUV on a public street unattended.

19. SMITH had the contact telephone of Mr. Legier at the time but the defendants were not interested in speaking with Mr. Legier who was then in Florida.

20. After this explanation, GIANNETTI claimed that an NYPD narcotics dog had sniffed said SUV and alerted him to the presence of unidentified narcotics or controlled

substances in the SUV.

21. No controlled substance was ever found in the SUV. SMITH believes that the dog sniffing narcotics was a ruse by GIANNETTI to arrest SMITH and take SMITH into police custody.

22. Despite the foregoing, GIANNETTI instructed INOA to place handcuffs on SMITH which INOA did, and both Defendants took SMITH into police custody, had him fingerprinted and his mug shots taken.

23. SMITH was subsequently arraigned before a Judge of the Criminal Court of the City of New York approximately between 1:00 PM and 2:00PM on Saturday, January 17, 2015, on charges of Attempted Grand Larceny in the Second Degree, among others charges.

24. Defendants knew well that SMITH did not engage in any attempted grand larceny since Defendants refused the opportunity of speaking with Mr. Legier which any reasonable officer would take to clear up any genuine misgivings they might have had.

25. SMITH was released on bail and hired a private attorney who represented him until all charges were dismissed against him on February 18, 2015. Annexed hereto as **Exhibit A** is a copy of the Certificate of Disposition of the case.

AS AND FOR A FIRST CAUSE OF ACTION: 42 USC §1983, FOURTH AMENDMENT

SEIZURE

26. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "25" as if fully set forth herein.

25. By reason of the foregoing, GIANNETTI and INOA committed an unlawful

seizure of SMITH in violation of SMITH's rights guaranteed under the Fourth Amendments to the Constitution of the United States.

26. Said violation of constitutional rights can be redressed pursuant to 42 U.S.C. §1983.

27. By reason of the foregoing, Plaintiff has suffered loss and damage.

AS AND FOR A SECOND CAUSE OF ACTION: COMMON LAW FALSE ARREST

28. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "27" as if fully set forth herein.

29. When Defendants arrested SMITH, they fully intended to confine SMITH and restrain SMITH's liberty.

30. SMITH was fully conscious of his confinement and detention in police custody, from the time of the placement of handcuffs on him until his arraignment before a Judge of the Criminal Court.

31. SMITH did not consent to his aforesaid detention and confinement by the Defendants, nor was SMITH's detention and confinement by the Defendants otherwise privileged.

32. The CITH is liable for the conduct of the individual Defendants on a theory of respondeat superior.

33. By reason of the foregoing, Plaintiff has suffered loss and damage.

AS AND FOR A THIRD CAUSE OF ACTION: 42 USC §1983 and COMMON LAW

MALICIOUS PROSECUTION

34. Plaintiff repeats and realleges each and every allegation contained in paragraphs “1” through “33” as if fully set forth herein.

35. Following SMITH’s arraignment in court on January 17, 2015, Defendants continued to maliciously prosecute SMITH on the aforesaid false charges until February 18, 2015, when all charges were dismissed and the case sealed.

36. Said malicious prosecution terminated in favor of the Plaintiff.

37. By reason of the foregoing, plaintiff has suffered loss and damage.

38. The reliefs sought herein are in excess of the jurisdictional limits of all lower courts which would otherwise have jurisdiction of the claims herein.

39. Jury trial is demanded for all matters triable by jury.

**WHEREFORE**, Plaintiff requests that the Court grant the following reliefs:

- a) Damages on all causes of action in an amount to be established at the trial of this action;
- b) Punitive damages against the individual GIANNETTI and INOA herein;
- c) Statutory attorneys’ fees under 42 U.S.C. §1988;
- d) Such other or further relief, including costs, disbursements and interest, as to this Court shall seem just and proper in the circumstances.

Dated: New York, New York  
June 7, 2016

**LAW OFFICES OF K.C. OKOLI, P.C.**

Attorneys for Plaintiff

LEVON SMITH

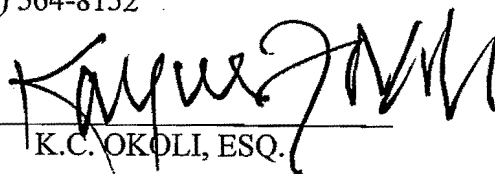
330 Seventh Avenue

15<sup>th</sup> Floor

New York, New York 10001

(212) 564-8152

By:

  
K.C. OKOLI, ESQ.

FOR SERVICE ON

CITY OF NEW YORK

C/o ZACHARY W. CARTER

Corporation Counsel

NYC Law Department

100 Church Street

New York, New York 10007

SERGEANT CHRISTOPHER GIANNETTI

New York City Police Department

New York, New York

P.O. JUAN INOA

New York City Police Department

New York, New York

# **EXHIBIT A**

**Law Offices of K.C. OKOLI, P.C.  
330 Seventh Avenue, 15<sup>th</sup> Floor, New York, N.Y. 10001**

CRIMINAL COURT OF THE CITY OF NEW YORK  
COUNTY OF NEW YORK

THE PEOPLE OF THE STATE OF NEW YORK  
VS

CERTIFICATE OF DISPOSITION

NUMBER: 394109

SMITH, LEVON  
Defendant

08/22/1964  
Date of Birth

220 YONKERS AVENUE  
Address

5056762R  
NYSID Number

YONKERS NY  
City State Zip

01/15/2015  
Date of Arrest/Issue

Docket Number: 2015NY003620

Summons No:

110-155.40-110-155.30  
Arraignment Charges

Case Disposition Information:

Date Court Action  
02/18/2015 DISMISSED - MOTION OF DA

Judge Part  
SOKOLOFF, L F

NO FEE CERTIFICATION

GOVERNMENT AGENCY COUNSEL ASSIGNED

NO RECORD OF ATTORNEY READILY AVAILABLE. DEFENDANT STATES COUNSEL WAS ASSIGNED

SOURCE ACCUSATORY INSTRUMENT DOCKET BOOK/CRIMS CRC3030 [CRS963]

I HEREBY CERTIFY THAT THIS IS A TRUE EXCERPT OF THE RECORD ON FILE IN  
THIS COURT.

FREEMANN, S  
COURT OFFICIAL SIGNATURE AND SEAL

02/23/2015  
DATE FEE: NONE

(CAUTION: THIS DOCUMENT IS NOT OFFICIAL UNLESS EMBOSSED WITH THE COURT  
SEAL OVER THE SIGNATURE OF THE COURT OFFICIAL.)

SEALED

pursuant to Section 160.50 of the CPL

SUPREME COURT OF THE STATE OF NEW YORK  
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Shield No. 20964,

Defendants

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**SUMMONS AND COMPLAINT**

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**LAW OFFICES OF K.C. OKOLI, P.C.**  
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(212) 268-3443 (fax)